

CV-26-003505 TOVAR, MARK A vs FCA US LLC – Defendant’s Motion to Compel Plaintiff’s Compliance with Code of Civil Procedure Section 871.26(b) – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: This matter was continued from August 6, 2026 to August 11, 2026. Below is the tentative ruling that the Court previously posted. Defendant filed the instant motion seeking to compel Plaintiff to provide code-compliant initial disclosures as required by Code of Civil Procedure section 871.26, subdivisions (b), (f), and (g). Plaintiff served initial disclosures but Defendant argues that Plaintiff’s initial disclosures are deficient. “Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Code Civ. Proc., § 871.26(b).) Subdivision (f) requires the plaintiff to provide documents for enumerated categories and subdivision (g) requires the plaintiff to provide information. Here, Plaintiff’s responses are deficient. For example, Plaintiff is required to provide the sales or lease agreement, a copy of current registration, and certain financial information, but Plaintiff has not done so. As another example, Plaintiff is required to provide information concerning accidents and aftermarket modifications, but Plaintiff has not provided the information and instead Plaintiff’s response states that Plaintiff is searching for documents and/or information. The motion is GRANTED. The Court intends to sign the proposed order Defendant submitted in connection with its motion.

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